

SENATE BILL 2006

By Hatcher

AN ACT to amend Tennessee Code Annotated, Title 39  
and Title 68, Chapter 221, relative to unlawful  
disposal of waste.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 39-17-102(d), is amended by  
deleting the subsection and substituting:

(1) Except as provided in subdivision (d)(2), an offense under this section is a  
Class C misdemeanor.

(2) An offense under this section is a Class B misdemeanor if the person  
commits the offense while engaged in the business of removing accumulated wastes  
from subsurface sewage disposal systems, as defined in § 68-221-402.

SECTION 2. Tennessee Code Annotated, Section 68-221-413(a), is amended by  
deleting the subsection and substituting:

(1) Except as provided in subdivision (a)(2), a violation of this part or rules  
promulgated pursuant to this part is a Class C misdemeanor.

(2) An offense under § 68-221-406(a)(7) involving the unlawful disposal of  
sewage or effluent from a subsurface sewage disposal system is a Class B  
misdemeanor if the person commits the offense while engaged in the business of  
removing accumulated wastes from subsurface sewage disposal systems.

SECTION 3. Tennessee Code Annotated, Section 68-221-713(f)(1), is amended by  
deleting the subdivision and substituting:

(A) Except as provided in subdivision (f)(1)(B), a violation of this part or rules  
promulgated pursuant to this part is a Class C misdemeanor.

(B) An offense under § 68-221-711(5) involving the unlawful discharge of sewage or any other waste or contaminant is a Class B misdemeanor if the person commits the offense while engaged in the business of removing accumulated wastes from subsurface sewage disposal systems, as defined in § 68-221-402.

SECTION 4. This act takes effect July 1, 2026, the public welfare requiring it.